

HOUSE BILL 1810

By Howell

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 68, Chapter 221, relative to unlawful
disposal of waste.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-102, is amended by adding
the following as a new subsection:

(e) Upon a conviction for a violation of this section by a person who committed
the violation while engaged in the business of removing accumulated wastes from
subsurface sewage disposal systems, as defined in § 68-221-402, the court shall notify
the commissioner of environment and conservation who shall suspend or revoke the
person's permit to engage in the business of removing accumulated wastes from
subsurface sewage disposal systems, or refuse to issue the person such permit, as
follows:

(1) For a first violation, the commissioner shall suspend the person's
permit, or refuse to issue the person such permit, as applicable, for thirty (30)
days;

(2) For a second violation, the commissioner shall suspend the person's
permit, or refuse to issue the person such permit, as applicable, for ninety (90)
days; or

(3) For a third or subsequent violation, the commissioner shall
permanently revoke the person's permit or permanently refuse to issue the
person such permit, as applicable.

SECTION 2. Tennessee Code Annotated, Section 68-221-413, is amended by adding the following as a new subsection:

(c) Upon a conviction for a violation of § 68-221-406(a)(7) involving the unlawful disposal of sewage or effluent from a subsurface sewage disposal system by a person who committed the violation while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems, the court shall notify the commissioner who shall suspend or revoke the person's permit to engage in the business of removing accumulated wastes from subsurface sewage disposal systems, or refuse to issue the person such permit, as follows:

(1) For a first violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for thirty (30) days;

(2) For a second violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for ninety (90) days; or

(3) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person such permit, as applicable.

SECTION 3. Tennessee Code Annotated, Section 68-221-713, is amended by adding the following as a new subsection:

(i) Upon a conviction for a violation under § 68-221-711(5) involving the unlawful discharge of sewage or any other waste or contaminant by a person who committed the violation while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems, the court shall notify the commissioner who shall suspend or revoke the person's permit to engage in the business of removing

accumulated wastes from subsurface sewage disposal systems, or refuse to issue the person such permit, as follows:

(1) For a first violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for thirty (30) days;

(2) For a second violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for ninety (90) days; and

(3) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person such permit, as applicable.

SECTION 4. This act takes effect July 1, 2026, and applies to violations occurring on or after that date, the public welfare requiring it.